

		website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
117	Heath vs. Rainbow Home Care Services, Inc. 2024-01444583	Motion for Final Approval of Class/PAGA Settlement Plaintiff David Heath's Motion for Final Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 12/6/2024, Plaintiff David Heath, individually and on behalf of other members of the general public similarly situated, filed a class action and PAGA complaint against Defendant Rainbow Home Care Services, Inc., alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #2.) On 6/27/2025, Plaintiff filed a Motion for Preliminary Approval of the Class action and PAGA settlement. (ROA #37.) On 2/19/2026, at the second hearing on the matter, the Court conditionally granted the motion. (ROA #95.) On 2/27/2026, the Court entered the signed order granting the motion. (ROA #100.) On 6/25/2026, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #117.) On 7/9/2026, Plaintiff submitted an updated declaration by the administrator. (ROA #121.) The motion seeks approval of the Amended Joint Stipulation of Class Action and PAGA Settlement ("Settlement Agreement"), which provides for the settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount ("GSA") of \$950,000. The GSA includes \$75,000 allocated for PAGA penalties. The Class is comprised of 697 Class Members, defined as "all current and former hourly-paid or non-exempt employees of Defendant within the State of California at any time during the Class Period." The Class Period is 12/6/2020 through 7/11/2025. The settlement also includes 434 Aggrieved Employees, defined as "all current and former hourly-paid or non-exempt employees of Defendant within the State of California at any time during the PAGA Period." The PAGA Period is 9/11/2023 through 7/11/2025.

		The settlement administrator, ILYM Group, Inc., reports as follows: • On 5/1/2026, the administrator sent class notices via U.S. Mail to 697 Class Members, including 434 Aggrieved Employees. • As of 7/9/2026: ○ 48 packets were returned as undeliverable. After skip tracing, administrator remailed 31 packets, but 17 packets remained undeliverable. ○ No requests for exclusion, objections, or workweek disputes were received. Therefore, 100% of the Class is participating in the settlement. The Court concludes that the \$950,000 settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. The Court also certifies the defined Class for settlement purposes only. The Court concludes that an attorneys' fee award totaling \$285,000 or 30% of the GSA, constituting a 1.58 multiplier against the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action's contingent nature and the results achieved. The Court further concludes that a Class Representative Service Payment of \$5,000 is fair, adequate, and reasonable for a class and settlement of this size, considering that there was nothing extraordinary about Plaintiff's contribution to the case. The Court has identified the following minor issue with the moving papers, which must be addressed by Class Counsel before the Court will sign the Order Granting Final Approval and Judgment: 1. The moving papers do not provide the final total number of workweeks and pay periods encompassed by the updated Class Period after the escalator clause was triggered and Defendant elected to shorten the class period. This issue must be addressed by Class Counsel within five (5) court days. Upon resolution of this issue, the Court will grant the instant motion and approve the following specific awards and disbursements from the GSA: • Attorneys' fees totaling \$285,000.00 awarded to Class Counsel; • Litigation costs totaling \$17,774.88 awarded to Class Counsel; • Settlement administration costs of \$16,350.00 awarded to ILYM Group, Inc.; • Class Representative Service Payment of \$5,000.00 awarded to Plaintiff David Heath; and • \$48,750.00 remitted to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties.
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		The Net Settlement Amount payable to all Class Members is \$577,125.12, including the \$26,250.00 in PAGA penalties to be distributed to the Aggrieved Employees, in accordance with the terms of the Settlement Agreement. Pursuant to the Settlement Agreement, Defendant is ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments. Within five (5) court days, Class Counsel must submit a revised Proposed Order of Final Approval and Judgment with the following revisions: 1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. 2. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached. 3. In ¶ 19, the proposed order and judgment should specify that the settlement administrator will post a copy of the order and judgment on the website for 180 days. 4. The proposed order and judgment should state that the Court's continuing jurisdiction is pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h). 5. The proposed order and judgment should state that the settlement administrator's final report should be filed at least 16 <i>court</i> days before the Final Accounting hearing. Final Accounting is set for April 6, 2028, at 2:00 p.m. in Department CX102. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff is ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.
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